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U.S. Department of Homeland Security
20 Mass. Ave., N.W., Rm. A3042
Washington, DC 20529

U.S. Citizenship and Immigration Services

B2

[redacted]

FILE: WAC 01 283 53313 Office: CALIFORNIA SERVICE CENTER Date: JAN 31 2005

IN RE: Petitioner: [redacted]
Beneficiary:

PETITION: Immigrant Petition for Alien Worker as an Alien of Extraordinary Ability Pursuant to Section 203(b)(1)(A) of the Immigration and Nationality Act, 8 U.S.C. § 1153(b)(1)(A)

ON BEHALF OF PETITIONER:

[redacted]

INSTRUCTIONS:

This is the decision of the Administrative Appeals Office in your case. All documents have been returned to the office that originally decided your case. Any further inquiry must be made to that office.

Robert P. Wiemann, Director
Administrative Appeals Office

DISCUSSION: The preference visa petition was denied by the Director, California Service Center, and is now before the Administrative Appeals Office on appeal. The appeal will be dismissed.

The petitioner seeks classification as an employment-based immigrant pursuant to section 203(b)(1)(A) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1153(b)(1)(A), as an alien of extraordinary ability. The director determined the petitioner had not established the sustained national or international acclaim necessary to qualify for classification as an alien of extraordinary ability.

Review of Citizenship and Immigration Services (CIS) records indicates that, subsequent to filing the instant petition, the petitioner filed another Form I-140 petition under a lesser classification, with receipt number WAC 02 254 50190. CIS records further indicate that the second petition was approved on February 26, 2003. The alien subsequently filed a Form I-485 Application to Adjust Status, receipt number WAC 03 136 50811, which was approved on July 28, 2004.[1] Because the alien has adjusted to lawful permanent resident status, further pursuit of the matter at hand is moot.

ORDER: The appeal is dismissed, based on the alien's adjustment to lawful permanent resident status.

[1] The petitioner adjusted status after, in response to a query from this office, he declined to withdraw the appeal based on the approval of another Form I-140 petition. We emphasize that this notice is not an acknowledgement of a withdrawal, which has not occurred, but a dismissal due to the petitioner's subsequent adjustment of status.